

In T 85/93 (OJ 1998, 183) the board pointed out that evidence of common general knowledge, like any other evidence in support of an opponent's submissions, should be filed at an early stage in the proceedings before the opposition division, and might be rejected as inadmissible at the board's discretion if filed for the first time during appeal proceedings.

In T 274/99 the board considered the late-filed textbook under Art. 114(1) EPC 1973 – although late-filed documents, including those that prove common general knowledge, could be disregarded under the boards' case law – because it provided a better understanding of the state of the art, it was obviously relevant, its submission could be seen as reasonable as far as the respondent was concerned, and its consideration did not delay the proceedings in any way.

5.13.2 Relevance

According to the case law of the boards of appeal a criterion to be taken into account is whether a late-filed document is *prima facie* highly relevant and whether there is proper justification for its late filing to forestall tactical abuse. Such material should be *prima facie* highly relevant in the sense that it can reasonably be expected to change the eventual result and is thus highly likely to prejudice the maintenance of the European patent (see T 1002/92, OJ 1995, 605; T 212/91; T 931/06; T 501/09; T 1306/09; T 2542/10; T 54/16 and T 1680/15). On the requirement of *prima facie* relevance, see also chapter IV.C.4.5.3.

In T 1002/92, the board stated that the criteria governing the admission of late-filed facts, evidence and arguments are more restrictive and stringent in **proceedings before the boards of appeal** than in opposition proceedings at first instance. In contrast to the first-instance proceedings, the appeal procedure is a judicial procedure and therefore "less investigative". Therefore, as regards **proceedings before the boards of appeal**, new facts, evidence and related arguments which go beyond the "indication of the facts, evidence and arguments" presented in the notice of opposition pursuant to R. 55(c) EPC 1973 in support of the grounds of opposition on which the opposition is based should only very exceptionally be admitted into the proceedings in the appropriate exercise of the board's discretion and if such new material was *prima facie* **highly relevant**.

In R 6/17 the Enlarged Board noted that the *prima facie* relevance of a document is not listed explicitly in either Art. 13(1) or Art. 13(3) RPBA 2007. However, the list of criteria in Art. 13(1) RPBA 2007 is non-exclusive, and the criterion of *prima facie* relevance has been applied by some boards of appeal as one criterion amongst others. The *prima facie* relevance is certainly neither the most relevant nor does it stand alone, i.e. without interdependence on other criteria. The interest in procedural expediency and procedural economy is also expressed in the common approach not to admit late documents which, *prima facie*, are no more relevant than what is already on file.

In T 2054/11 the board pointed out that, once oral proceedings on appeal had been arranged, and especially just before or during those proceedings, whether or not late-filed

amendments to a party's case could be considered no longer depended in practice on whether they were relevant (see Art. 13(3) RPBA 2007). See also T. 552/18.

In T. 662/14 the board considered that only in exceptional cases was a document's allegedly high relevance a factor which justified the admission of new evidence and related arguments in appeal proceedings.

In T. 2576/12 the board pointed out that, when exercising its discretion under Art. 12(4) RPBA 2007, it could make admitting prior art filed for the first time with the grounds for appeal dependent on whether it was prima facie (highly) relevant but that it did not have to, because otherwise there would be nothing to stop an opponent from always withholding (highly) relevant prior art until filing its grounds for appeal (see also T. 724/08).

In T. 367/15 the board found that not admitting a highly relevant document liable to be prejudicial to the contested patent's validity could lead to the unsatisfactory result that a patent was maintained that would have been revoked if the document had been considered. The board therefore had to strike a balance between two demands in the public interest, namely ensuring procedural fairness and preventing unjustified monopolies.

In T. 887/11 the board admitted the (new) evidence as well as the offered witness testimony submitted with the appeal grounds into the proceedings because of their high relevance.

Examples of other decisions in which (prima facie) highly relevant documents were admitted are T. 182/09, T. 1404/10, T. 605/11, T. 1830/13, T. 340/12, T. 931/06, T. 1105/04 (both parties considered the document to be the closest prior art).

In T. 609/99 the board stated that despite the proprietor's objection to the admission of evidence which had been disregarded in the opposition procedure pursuant to Art. 114(2) EPC 1973, the board might, in certain circumstances, take account of this evidence without any implication that it was prima facie highly relevant. This exercise of discretion was not inconsistent with the criteria set out in T. 1002/92 (OJ 1995, 605). In the circumstances of the case at issue the board's admission of evidence had not extended the legal and factual framework.

5.13.3 Complexity of new subject-matter

Some boards have held that new submissions should normally be disregarded if the **complexity of the technical or legal issues** raised is such that clearly neither the board nor the other party can be expected to deal with them without adjournment of the oral proceedings. Complex fresh subject-matter filed at short notice before or during oral proceedings runs the risk of being not admitted to the proceedings without any consideration of its relevance or allowability (see T. 633/97, T. 1050/00, T. 1213/05).

A more recent case in point is T. 1914/15. The board there did not admit a new line of defence put forward by the patent proprietor, as it raised complex new issues which had

not previously been addressed during the written proceedings and had been submitted at the latest possible procedural stage, namely at the oral proceedings (Art. 13(1) and (3) RPBA 2007).

In T 1044/04 the board stated that the late-filed document was a relatively short document which did not raise further complex substantive questions with regard to technical or legal issues complicating the appeal proceedings. Thus the board decided to admit the late-filed document D6 into the appeal proceedings (see T 633/97, T 787/00).

5.13.4 Cases of abuse of procedure

a) Late-filed documents admitted

In some decisions, the boards of appeal have held that there has been no tactical abuse and taken late-filed documents into account under the principle of examination by the EPO of its own motion, since these might have put maintenance of the patent at risk (see T 110/89, T 315/92). In T 1029/05 the board stated that the issue of admissibility of the late-filed document boiled down to the following questions: (i) whether the late filing is to be seen as an abuse of proceedings, and, if question (i) is answered in the negative, (ii) whether the relevance of the document is *prima facie* such as to justify its introduction into the proceedings (see also T 2020/09, T 158/14).

In several decisions, the boards considered that information had to have been withheld intentionally for this to amount to an abuse of procedure (see e.g. T 534/89, T 1019/92, T 1182/01, T 671/03, T 1029/05), but see also the decisions reported in section b), many of which did not require any such intent).

In T 1019/92 the board reached the conclusion that the fact that an opponent, after the end of the opposition period, subsequently submitted prior art material originating from itself, did not constitute an abuse of the proceedings in the absence of evidence that this was done deliberately for tactical reasons. However, see also T 1757/06 (abstract in next section).

In T 671/03 the opposition division did not admit documents D6 to D16 into the proceedings, stating that they had been filed more than two years after the expiry of the opposition period and were *prima facie* not so complete as to substantiate the alleged prior use. Three more documents were filed during the appeal proceedings. However, it was not apparent to the board that the submission of documents D6 to D19 had been deliberately delayed for tactical reasons. Documents D6 to D19 could therefore not be disregarded without considering their relevance. Following a detailed examination of the relevance of the various documents, the board concluded that D18 could be admitted into the proceedings because it was *prima facie* highly relevant (T 1182/01 and T 1029/05).

In T 151/05 the fact that the appellant relied first on prior use 2 and then, after having realised that this argument was not sufficiently substantiated, on other evidence for demonstrating the common general knowledge was seen by the board as a misjudgement

but not as an abuse of the proceedings. Consequently, the board considered the relevance of the documents. See also T. 552/18.

b) Late-filed documents not admitted

In T. 951/91 (OJ 1995, 202) the board refused to take account of late-filed evidence **even before it was actually submitted** and pointed out that the discretionary power given to the departments of the EPO pursuant to Art. 114(2) EPC 1973 served to ensure that proceedings could be concluded swiftly in the interests of the parties, the general public and the EPO, and to forestall tactical abuse. Parties had to take into account the possibility that late-filed material would be disregarded and do their best to submit the facts, evidence and arguments relevant to their case as early and completely as possible. The board held that the submission of fresh experimental data proposed to be filed by the appellant (opponent) some 20 months after the statement of grounds of appeal had been filed as an abuse of procedure.

In T. 496/89 the board pointed out that the late introduction of documents and of other matter into the appeal proceedings is inimical and contrary to the public interest, quite apart from being unfair to the other party. Attempts by either party to spring a surprise on the other by deliberate late-filing, as well as inadvertent omissions to present arguments and the evidence needed to support them, ran counter to the spirit and intent of the Convention (see also T. 430/89, T. 270/90, T. 741/91, T. 135/98).

The board in T. 718/98 decided that a party's introduction, at a very late stage of the proceedings, of evidence which could have been filed much earlier, as a strategic measure to improve its own case against the opposing party, amounted to an abuse of procedural rights (see also T. 169/04).

In T. 446/00, the board identified various forms of behaviour as abuses of procedure, including non-compliance with a procedural direction of the board requiring a party to take a certain step or steps. It was also an abuse of procedure for a party to adopt an unequivocal position on an issue and subsequently to depart from that position without explanation. That applied particularly, but not solely, in contested inter partes proceedings, in which another party was entitled to rely on that position as part of the case it had to meet (see also T. 762/07).

In T. 215/03 the appellant (opponent) sought to rely on a document (D24) filed approximately one year after commencing the appeal proceedings together with 25 other documents (in total about 450 pages of technical literature). The board stated that under the particular circumstances of the case, that the belated submission of evidence was not justified. To submerge, at such a late stage of proceedings, the other party and the board under a deluge of paper amounted to an abuse of procedure.

In T. 1757/06 the opponent (Dow chemical) submitted a patent publication filed by Dow Italia two months before the oral proceedings before the board of appeal. The board held that the opponent and the applicant were separate corporate entities, but nevertheless it would be expected that companies of the same commercial group would have knowledge

of their own patent documents. Normally the attempt of a party to file at a late stage one of its own publications will fail, as this is considered to be an abuse of procedure.

5.13.5 Late submission of experimental data

a) Test reports admitted into the proceedings

In T 192/09 the late filing of the additional experimental report could not be seen as an abuse of procedure. The new results had been submitted one month before the oral proceedings, in accordance with the instructions of the board. This had provided the respondent with adequate time to examine the data, decide if counterexperiments were necessary and assess whether it was feasible to provide these within the available time.

In T 317/10 the board admitted into the proceedings a late-filed test report which had been filed shortly before the scheduled oral proceedings, finding that its late submission did not raise issues which the board or the respondent could not reasonably be expected to deal with without adjournment of the oral proceedings. Similarly, in T 596/11, in view of the prima facie highly relevant nature of the results in a test report, and the fact that no objections to their lateness, correctness or admittance had been raised by the respondent, the board admitted them into the proceedings.

b) Test reports not admitted into the proceedings

In some cases, experimental data submitted shortly before the oral proceedings before the boards of appeal was found to be late filed and so inadmissible under Art. 114(2) EPC. The reason invoked was that the handling of such data was more cumbersome and time-consuming than that of scientific publications, since it usually called for counter-experiments (T 342/98, T 120/00, T 157/03, T 311/10). In T 569/02, the board held that comparative experiments normally required careful consideration by the other party, including discussions with technical experts, who could not be expected to be immediately available. It might also be necessary for the other party to repeat the tests or perform other tests themselves. The board did not consider that the **relevance of the tests** played a role, since even relevant evidence of this type should not be filed at such a late stage in the proceedings. See also T 760/05 (filing an experimental report shortly before the date indicated by the board as the ultimate date for filing submissions).

Other decisions in inter partes cases in which the boards held that experiment results had to be submitted sufficiently well in advance of oral proceedings to give the other party an opportunity to perform counter-experiments are e.g. T 270/90, OJ 1993, 725; T 939/90; T 375/91; T 685/91; T 305/94; T 245/10; and T 832/08, referring to the principle of equal treatment. Very late submission of experiment results (seven weeks before the oral proceedings) is contrary to a fair and expedient procedure (T 375/91, T 1008/05).

In T 356/94 the board pointed out that taking into consideration comparative tests presented on the same day as oral proceedings were held could constitute an infringement of the other party's right to be heard (see also T 481/00, T 567/02).